Handling a Disciplinary Matter Fairly: A Guide for Kenyan Employers

Few moments test a manager like a disciplinary issue. Handled well, it protects the team and the organisation. Handled badly, it can lead to a claim for unfair treatment, even when the employee was clearly at fault.

Review date: _____ Reviewed by: _____

Key points

• Fairness has two parts: a valid reason and a fair process.

• The employee should know the allegation and have a real chance to respond.

• Document each step as it happens.

Start by establishing the facts

Before any meeting, gather what happened: dates, witnesses, documents and any earlier warnings. Decide whether the matter is about conduct or performance, because the right response is different for each.

Give notice and a chance to respond

The Employment Act expects an employer to explain the allegation to the employee, in a language they understand, and to give them a chance to respond. Where the matter could lead to dismissal, the employee may bring a fellow employee or a union representative to the hearing.

- ☐ Write the allegation down clearly
- ☐ Allow reasonable time to prepare
- ☐ Hold the hearing with a neutral chair where possible
- ☐ Record what the employee says

Decide proportionately

Consider the seriousness of the issue, the employee's record, your policy and how similar cases were handled before. Consistency matters, and a response far harsher than usual invites a challenge.

Communicate the outcome in writing

State the decision, the reasons, any sanction and the right of appeal where your policy provides one. Keep copies on the personnel file.

When to take specialist advice

Summary dismissal, serious misconduct, discrimination or harassment allegations and anything involving redundancy are areas where a short consultation before acting can save a great deal of cost

later.

This article is general information, not legal advice. Employment law changes, so take professional advice on your specific situation.